

Social Behavior (Reform) Act, 1976

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Social Conduct (Reform) Act, 2033 (1976)

Royal Seal and Date of Publication

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Amending Acts

1. Administration of Justice Act, 2048 (1991) 2048.2.16
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.07
3. Some Nepal Laws Amendment and Repeal Act, 2072 (2015) 2072.6.14
4. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13

Act No. 31 of the year 2033 (1976)

An Act Made to Reform Social Conduct

Preamble: Whereas it is desirable to control and reform the increasing competitive ostentation and wasteful expenditure occurring in social conduct,

This Act is hereby made by His Majesty King Birendra Bir Bikram Shah Dev on the advice and with the consent of the National Panchayat. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Social Conduct (Reform) Act, 2033 (1976)."

(2) This Act shall extend to omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). throughout Nepal.

(3) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act ?

(a) "Social conduct" means marriage, sacred thread ceremony (bratabandha), tonsure (chudakarma), rice-feeding ceremony (pasni), naming ceremony (nwaran), birthday, sixth-day ritual (chhaithi), old-age rice-feeding ceremony (budo-pasni), and ancestral rites (pitri-karya).

(b) "Close relative" means a relative within four generations on the father's side and mother's side of the person whose social conduct is being performed, and the term also includes the family of a brother with whom one must observe untouchability (juto) for thirteen days; nephews and nieces; grandchildren through one's daughter; children of one's father's sister; children of one's elder step-mother and younger step-mother; daughter and son-in-law; sister and brother-in-law; elder sister's husband; and mit (ritual friend). Provided that, in the case of ancestral rites (pitri-karya), the relative of the person performing the ancestral rites shall be understood as above. 3. Restriction on Tilak: (1) No tilak (engagement gift) shall be taken or given at the time of marriage.

(2) A person contravening sub-section (1) shall be liable to confiscation of the amount involved and a fine of

twelve thousand to twenty-five thousand rupees, or imprisonment for up to thirty days, or both. 4.

Bride's Party Not to Take: (1) When giving a daughter in marriage, the bride's party shall not, on that account, take any cash or kind for themselves. (2) No demand shall be made by the groom's party as to how much jewelry, clothing, cash or kind, or dowry (jetha) must be given for the daughter being married. (3) A person contravening sub-section (1) shall be liable to confiscation of the amount involved and a fine of twelve thousand to twenty-five thousand rupees, or imprisonment for up to one year, or both. The giver shall be liable to half that punishment. (4) A person contravening sub-section (2) shall be liable to a fine of up to ten thousand rupees, or imprisonment for up to fifteen days. 5. **Control of Dowry (Daijo):** (1) At the time of marriage or after marriage, the groom's party shall not demand from the bride's party that a certain amount of cash or kind be given as dowry, donation, gift, offering, or farewell present (bidaai uphaar) in any form, nor shall the two parties pre-determine that a certain amount shall be taken and given; and the groom's party shall not, on the ground that dowry was not given, create a quarrel, refuse to marry, or, if the marriage has already taken place, refuse to take the bride with them after the farewell ceremony, or (in places where the custom is for the bride to be sent later) refuse to take the bride after her subsequent farewell. (2) At the time of marriage, aside from one set of jewelry worn on the body, a person who voluntarily gives dowry according to family tradition may give dowry only up to a maximum of ten thousand rupees. (3) A person contravening sub-section (1) or (2) shall, if there is an amount that must not be taken or given, be liable to confiscation of that amount and a fine of up to ten thousand rupees, or imprisonment for up to fifteen days, or both. 6. **Prohibition on Bearing Other Financial Liabilities:** (1) Expenses incurred or to be incurred for the groom's education, or capital required to invest him in trade or business, or marriage expenses on the groom's side shall not be taken from the bride's party. (2) The bride's party shall not bear, nor cause the other party to bear, the travel expenses and food expenses incurred when bringing the wedding procession (janti). (3) No cash or kind presents shall be given to those who go in the wedding procession.

Provided that, there shall be no bar to paying cash or kind wages to porters accompanying the wedding procession.

(4) A person contravening sub-section (1) or (2) shall be liable to confiscation of the amount involved and a fine of twenty thousand to forty thousand rupees, or imprisonment for up to fifteen days, or both.

(5) A person contravening sub-section (3) shall be liable to a fine of twenty thousand to forty thousand rupees, or imprisonment for up to fifteen days. 7. **Control of Wedding Procession (Janti):** (1) No more than fifty-one persons, including musicians, shall be taken in the wedding procession (janti or bariyat).

(2) No hired dance of any kind shall be performed in the wedding procession.

(3) Fireworks shall not be set off in the wedding procession.

(4) No more than eleven musicians shall be kept in the wedding procession.

(5) A person contravening this section shall be liable to a fine of up to ten thousand rupees, or imprisonment for up to fifteen days, or both. 8. **Control of Wedding Feast:** (1) In the feast organized by the groom's and bride's parties, no more than fifty-one persons out of other neighbors and friends, excluding close relatives, shall be invited.

(2) A person contravening sub-section (1) shall be liable to a fine of up to twenty thousand rupees, or imprisonment for up to fifteen days, or both. 9. **Control of Feasts for Chhaithi, Nwaran, Birthday, Pasni, Chudakarma, Bratabandha, Budo-Pasni:** (1) When performing chhaithi, nwaran, birthday, pasni, chudakarma,

bratabandha, or budo-pasni, no more than twenty-five persons out of other neighbors and friends, excluding close relatives connected with that ceremony, shall be invited to the feast.

(2) If sub-section (1) is contravened, there shall be a fine of ten thousand rupees, or imprisonment for up to seven days, or both. 10. Control of Feast for Ancestral Rites (Pitri-Karya): (1) When performing the funeral rites, shraddha, and various other rituals after the death of any person, no more than twenty-five persons out of other neighbors and friends, excluding close relatives and mourners (malami/guthiyar), shall be invited to the feast.

(2) A person contravening sub-section (1) shall be liable to a fine of up to ten thousand rupees, or imprisonment for up to seven days, or both. 11. Not to Display Dowry etc.: (1) In connection with social conduct, any item of dowry or other gift being taken or sent shall not be taken or sent in an ostentatious display.

(2) A person contravening sub-section (1) shall be liable to a fine of up to five thousand rupees, or imprisonment for up to seven days, or both. 12.

Not to Ostentatiously Decorate House: (1) When performing social conduct, the house shall not be decorated with lights in an ostentatious manner exceeding what is required for the occasion. (2) A person contravening sub-section (1) shall be liable to a fine of up to ten thousand rupees, or imprisonment for up to seven days. 13. Amended by the Some Nepal Acts Amendment Act, 2072 (2015). Duty of Local Level: (1) If it is learned that any act prohibited under this Act is being done or is about to be done by any person, the local Village or Municipality shall advise and counsel the concerned person not to do such act. (2) If, despite advising and counseling under sub-section (1), the concerned person disregards it and does or is about to do the prohibited act, the local level shall inform the District Office for legal action against such person. 14. Government of Nepal May Issue Orders: The Government of Nepal may, by imposing a ceiling on expenses incurred in marriage, bratabandha, chudakarma, pasni, budo-pasni, ancestral rites (pitri-karya), etc., issue orders by publishing a notice in the Nepal Gazette. 15. Account to be Shown: (1) In the course of social conduct, the concerned Chief District Officer may demand a list of persons invited to the feast and details of whether the Act has been complied with; and the concerned person shall furnish the details so demanded within fifteen days, excluding the time for travel, from the date of receipt of the notice. The Chief District Officer may demand such details only where a complaint has been lodged within the time limit of this Act. (2) If the details demanded by the Chief District Officer under sub-section (1) are not provided, there may be a fine of up to three thousand rupees, or imprisonment for up to three days, or both. 16. Government of Nepal to be Plaintiff: In cases under this Act, the Government of Nepal shall be the plaintiff. 17. Investigation and Filing of Case: (1) Investigation of an offense punishable under this Act shall be conducted by the police, and upon completion of such investigation, the police shall file the case before the authority having jurisdiction to hear the case. (2) When investigating and filing a case under sub-section (1), the police may obtain the opinion of the government attorney. 18. Time Limit for Filing Case: If a case is not filed within thirty-five days from the date of contravention of this Act or of the rules made under this Act, the case shall not be entertained. 19.

Authority to Hear Case and Procedure: (1) The authority to conduct initial proceedings and decide cases under this Act shall vest in the Chief District Officer. (2) In cases under this Act, the Chief District Officer shall follow the procedure under the Special Court Act, 2059 (2002). (3) An appeal against a decision of the Chief District Officer shall lie to amended by the Some Nepal Acts Amendment Act, 2072 (2015). the District Court. 20. Penalty: (1) If any act prohibited under the rules made under this Act is done, there shall be a fine of up to

thirty thousand rupees, or imprisonment for up to thirty days. (2) If a government employee, or an employee of an organized institution owned or controlled by the Government of Nepal, or an employee of a corporation or organized autonomous institution established by the Government of Nepal, does or causes to be done any act prohibited under this Act or the rules made under this Act, then, in addition to the punishment prescribed in this Act, such employee shall also be liable to departmental action according to the law relating to his/her service conditions. (3) omitted by the Some Nepal Laws Amendment and Repeal Act, 2072 (2015) 21.

Power to Make Rules: (1) The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. (2) Without prejudice to the generality of the power conferred by sub-section (1), rules may be made, in particular, on the following matters: (a) In relation to conduct concerning swayambar, saipata (formal gift exchange), kanyadan (giving away the bride), going to see the bride's face (mukhehernu), meetings of the families (samdhi-samdhini). (b) In relation to feeding the wedding procession by the bride's side. (c) In relation to conduct performed within one year after marriage. (d) In relation to conduct performed before or after childbirth. (e) In relation to looking after one's parents (ama babuko mukh herne). (f) In relation to bhai-tika (ritual for brothers). (g) In relation to bringing auspicious gifts (sagun) in social conduct. (h) In relation to making donations etc. during ancestral rites (pitri-karya). (i) In relation to fixing the number of guests to be invited in social conduct. (j) In relation to the return of the bride (dulan farkaune). (k) In relation to fixing the maximum number of close relatives to be invited to the feast.